

Court No. - 34

Case :- WRIT - C No. - 17861 of 2020

Petitioner :- M/S New Mount Trading And Investment

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C.,Ajay Singh,Pranjal Mehrotra

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Jayant Banerji,J.

Though a submission has been advanced by the learned counsel for the petitioner that the apartment in question has been handed over to Kanha Shyam Apartment Owners Welfare Association strictly in accordance with the provisions of U.P. Apartment Act, 2010, and now the petitioner being promoter is not liable to pay the cost of conversion from single point supply to multi point supply demanded by the Kanpur Electricity Supply Company (KESCO). But there is nothing on record of the writ petition to substantiate the said submission.

The learned counsel for the petitioner prays for and is granted one week time to file a supplementary affidavit.

Put up this matter as fresh on 10.12.2020.

Order Date :- 23.11.2020

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A prayer for adjournment has been made by Sri Mayank Kumar Agrawal, learned counsel for the petitioner.

Put up as fresh on 6.1.2021.

Name of Sri Rajendra Kumar Mishra, learned Advocate be shown from the side of the respondent.

Order Date :- 10.12.2020

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Court No. - 29

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Petitioner :- M/S New Mount Trading And Investment

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Mayank Kumar Agrawal

Counsel for Respondent :- C.S.C.,Ajay Singh,Pranjal Mehrotra,Rajendra Kumar Mishra

Hon'ble Pankaj Naqvi,J.

Hon'ble Piyush Agrawal,J.

Heard Shri Mayank Kumar Agrawal for the petitioner, Shri Rajendra Kumar Mishra for respondent no. 2, Shri Pranjal Mehrotra for respondent nos. 3 & 4 and learned Standing Counsel for respondent no. 1.

This writ petition has been filed for the following, amongst other, reliefs:-

"i. To issue a writ, order or direction in the nature of certiorari quashing the impugned demand notices dated 09.10.2019, 09.07.2019 & 03.02.2020 (filed as Annexure No. 1 & 2 respectively to this writ petition) issued by the respondent no. 4;

ii. To issue a writ, order or direction in the nature of mandamus restraining the Distribution Licensee i.e. KESCO, Kanpur (now KESA, Kanpur) arrayed as respondent No. 3 & 4 from implementing the provisions of Clause 4.9 (Part-B) of the Electricity Supply Code (13th Amendment), 2018 No. UPERC/Secy/Regulations/Supply Code/2018/206 dated 10th August, 2018 with regard to the petitioners project;

iii. To issue a writ, order or direction in the nature of mandamus declaring Clause 4.9 (Part - A and B) of the Electricity Supply Code (13th Amendment), 2018 No. UPERC/Secy/Regulations/Supply Code/2018/206 dated 10th August, 2018 issued by the respondent No. 2 as contained in Annexure No. 17 to this writ petition as totally illegal and ultra-vires to the provisions of Section 183 of the Electricity Supply Code, 2003 and the Electricity (Removal of Difficulties) 8th Order, 2005 published in the Gazette of India vide Notification No. S.O. 798 (E) dated 09.06.2005 and quash the same;"

Learned counsel for the petitioner submits that the petitioner is engaged in construction of multi-storey buildings and is a private builder/colonizer. The petitioner, after construction of residential flats in the form of multi-storey towers, transfers the same to prospective buyers. On 19.11.2011, the petitioner applied for connection of 1900 KVA electricity at Arajai No. 1281, Barai Akbarpur Bangar, Indra Nagar, Kanpur, pursuant to which sanction of load of 1900 KVA at multiple point metering supply was granted. On 01.08.2013, the petitioner was granted 'No Objection Certificate' from the Director, Electrical Safety,

Lucknow. However, later on, the petitioner was informed that the earlier approval of 1900 KVA on multiple point supply has been converted to single point supply and load of 500 KW is being released on the ground that the petitioner shall install a meter for the purpose of giving supply at single point. Hence, the petitioner made arrangements for single point supply with single point meter as per clause 4.9(A) of the Electricity Supply Code, 2005 (as it was existed).

It is further submitted that on 13.03.2018, the respondent - Commission framed draft amendments for amending certain provisions of Electricity Supply Code, 2005, known as Electricity Code (13th Amendment), 2018 (No. UPERC/Supply/Regulations/Supply Code 2018/206, dated 10.08.2018); whereby, provision of single point connection has been obliterated from Supply Code of 2005 on the ground that distribution licensees are facing difficulties in implementing some of the provisions of Supply Code of 2005. The respondent - Commission has scrapped single point connection system not only from the new projects, but also from the project which has been completed and also, from ongoing projects.

Learned counsel for the petitioner has contended that the aforesaid amendment fails to resolve the conflict regarding raising separate bills for direct electricity consumption, common services and back up supply, as even after the amendment, the Management has to raise separate bills for back up supply and common services, which will make the system very complicated. Hence, challenge has been made to Clause 4.9 (Part - A and B) of the Electricity Supply Code (13th Amendment) issued by the respondent No. 2 as illegal and ultra-vires to the provisions of Section 183 of the Electricity Supply Code, 2003 and the Electricity (Removal of Difficulties) 8th Order, 2005 published in the Gazette of India vide Notification No. S.O. 798 (E) dated 09.06.2005.

Matter requires consideration.

Issue notice to the learned Advocate General of the State.

Learned Standing Counsel has accepted notice on behalf of respondent no. 1; Shri Rajendra Kumar Mishra has entered appearance on behalf of respondent no. 2 and Shri Pranjal Mehrotra has entered appearance on behalf of respondent nos. 3 & 4.

Issue notice to respondent no. 5.

Learned counsel for the respondents are granted a month's time

to file counter affidavit(s). Rejoinder affidavit, if any, may be filed two weeks thereafter.

Connect with Writ C No. 4545 of 2019 (*M/s Maxblis Construction Pvt. Ltd. Vs. State of U.P. & 4 Others*).

Order Date :- 27.1.2021

Amit Mishra